

Veer Pal Rajpoot v. State of U.P.

Allahabad High Court · Division Bench · 1 October 2019 · Writ-C No. 31476 of 2019 · **Writ disposed with liberty to approach the Executive Engineer under Clause 6.14 for instalments and adjustment of deposits.**

HEADNOTE

A consumer challenging recovery of electricity dues and seeking instalment payment, with a plea that deposits were not adjusted, was relegated to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005. If a representation is made within three weeks, the Executive Engineer shall consider adjustment of deposits and, if necessary, fix instalments, in accordance with law, preferably within a month.

FACTUAL SUMMARY

Veer Pal Rajpoot petitioned the Allahabad High Court against recovery of Rs.4,77,326 plus other charges as electricity dues. He contended that deposits already made had not been credited and asked to be allowed to pay the outstanding amount in instalments. Counsel for the petitioner and for the distribution licensee (respondents 4 and 5) were heard. The Court did not examine the correctness of the demand on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility and adjustment of deposits

HOLDING

A consumer facing recovery of electricity dues who seeks instalments and adjustment of deposits already made may approach the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005; the Executive Engineer shall consider the representation, including adjustment of deposits, and if necessary may fix instalments, in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 A consumer challenging recovery of electricity dues and seeking instalment payment, with a plea that deposits were not adjusted, was relegated to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERED SUM OF RS.4,77,326 PLUS OTHER CHARGES WAS CORRECTLY COMPUTED, AND WHETHER THE PETITIONER'S DEPOSITS HAD IN FACT BEEN LEFT UNADJUSTED.

Left for the Executive Engineer on the consumer's representation. ¶ 1